

4. 23CV01025 HARO, OSCAR V. GENERAL MOTORS, LLC

EVENT: Defendant General Motors LLC's Motion for Summary Judgment; or in the Alternative Summary Adjudication

Defendant General Motors LLC ("Defendant" herein) has met its burden to show that Plaintiff Oscar Haro's claims fail as a matter of law. *Code of Civil Procedure* §437c(p)(2); *Cummins, Inc. v. Superior Court* (2005) 36 Cal.5th 478; *Daugherty v. American Honda Motor Co.* (2006) 144 Cal.App.4th 824; Undisputed Material Fact No. 2; Declaration of Xylong Quezada at ¶3, and Exhibit A attached thereto; Declaration of Bryan Jensen at ¶¶4 and 6, and Exhibits A and C thereto; and Declaration of Gregory Yu at ¶1, and Exhibit 1 thereto. Specifically, the Court finds that Defendant has produced evidence showing the 2017 GMC Sierra 1500, VIN: 3GTU2NEC2HG367968 ("Subject Vehicle" herein), was purchased in Nampa, Idaho. Undisputed Material Fact No. 2; Declaration of Xylong Quezada at ¶3, and Exhibit A attached thereto; Declaration of Bryan Jensen at ¶¶4 and 6, and Exhibits A and C thereto; and Declaration of Gregory Yu at ¶1, and Exhibit 1 thereto. Therefore, Defendant has shown that the Subject Vehicle was not purchased in California and thus would not be covered under the Song Beverly Act.

The burden having shifted, the Court finds that Plaintiff has failed to meet his burden to raise a triable issue of fact, and Plaintiff's own evidence submitted in opposition to the motion further supports Defendant's position that the Subject Vehicle was purchased outside of California. Plaintiff also argues that the government interest test must be applied, but this argument is not persuasive. Defendant does not request that the Court apply non-California law to Plaintiff's claims. Rather, Defendant argues that the Song Beverly Act does not encompass claims arising from vehicles purchased outside of California. The Court agrees.

As to the Magnuson-Moss Warranty Act Claim, the Court finds that the California Court of Appeal's decision in *Daugherty v. American Honda Motor Co., Inc.* (2006) 144 Cal.App.4th 824 is controlling, and because Plaintiff cannot state an independent claim under the Magnuson-Moss Warranty Act without their Song-Beverly state law claims, Plaintiff's claim under the Magnuson-Moss Warranty Act must necessarily fail.

Defendant General Motors LLC's Motion for Summary Judgment is granted in its entirety. The Court vacates the Mandatory Settlement Conference on July 27, 2026, the Trial Readiness Conference on July 30, 2026, and the Jury Trial on August 3, 2026, and sets this matter for a Status Hearing on June 24, 2026 at 10:30 a.m. for status of judgment and dismissal.

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5-6. 23CV03337 OBRIEN, CAMERON RILEY V. PBM SUPPLY & MFG INC ET AL

EVENTS: (1) Defendant's Motion to Compel Arbitration

*(2) Case Management Conference *Special Set*

The Court finds that Defendant PBM Supply & Mfg Inc.'s ("Defendant" herein) conduct is inconsistent with an intent to arbitrate. Specifically, Defendant failed to move to compel arbitration for over two years and its litigation conduct evidences a waiver of the right to arbitrate. Defendant's Motion to Compel Arbitration is denied. The Case Management Conference is continued to July 29, 2026 at 10:30 a.m. Case Management Conference Statements are to be timely filed and served.

7. 24CV00332 TACALO, ALEXANDRA V. LARA, ANTHONY ET AL

EVENT: Defendants City of Gridley and Anthony Lara's Motion for Summary Judgment or, in the Alternative, Summary Adjudication

The Court, in its discretion, is inclined to consider the untimely filed Opposition and continue this matter to June 10, 2026 at 9:00 a.m. to allow for the filing of a substantive Reply.

8. 24CV00765 HATZIS, MORGAN RAE V. PRIETO, MARIA NERISSA ET AL

EVENT: Plaintiff's Motion for Monetary Sanctions

The Proof of Service on the Amended Motion indicates that it was served electronically on May 6, 2026, which is only ten Court days' notice. Pursuant to *Code of Civil Procedure* §§1005 and 1010.6(3)(B), six additional Court days' notice, plus two additional Court days' notice is required for electronic service. While the Court previously indicated that Plaintiff was authorized to file an Amended Motion, it was under the assumption that the Amended Motion would be properly noticed. The Court continues this matter to June 24, 2026 at 9:00 a.m. to allow for proper notice. Any Opposition and/or Reply shall be filed and served pursuant to *Code of Civil Procedure* §§1005 and 1010.6 in accordance with the new hearing date.

9. 24CV01428 LARSON, COREEN V. PUTZMEISTER AMERICA, INC.

EVENT: Defendant's Motion to Continue Trial Date

Pursuant to the Stipulation of the parties and the Order to Continue Trial Date executed by this Court on May 14, 2026, Defendant's Motion to Continue Trial Date is moot and is off calendar.